

between a contracting state and the EPO. The duration of the period of dislocation shall be as stated by the European Patent Office. The term "general interruption" was deleted in the process of revising R. 85(2) EPC 1973. However, as evidenced by the preparatory documents, the retained term "dislocation" also refers to interruptions (CA/PL 17/06, p. 356). Decisions which interpret the term "general interruption" are still cited in the following as an aid to interpreting the "general dislocation" referred to in R. 134(2) EPC.

In J 10/20 the board stated that R. 134(2) EPC did not distinguish between statutory periods and periods specified by a department of first instance or a board of appeal. Its scope of application was therefore not limited to the one or the other. The time limit for filing the statement of grounds of appeal may also be extended under this provision. If the requirements of R. 134(2) EPC are fulfilled, any time limit which expires within the period of interruption or dislocation is extended by operation of law (with regard to R. 85 EPC 1973, see J 11/88). The notices of the EPO concerning the disruptions due to the COVID-19 outbreak (see e.g. notice of 1 May 2020, OJ 2020, A60) refer to "the problems caused by the disruptions due to the COVID-19 outbreak". R. 134(2) EPC, however, did not refer to a "general dislocation" as such, but to a "general dislocation in the delivery or transmission of mail". The EPO's notices were silent on whether there was a general dislocation in the delivery or transmission of mail in Germany. It thus seemed likely that these notices were based on an application of R. 134(2) EPC by analogy. Users and representatives could not be expected to question, without any apparent reason, statements on the extension of time limits which were made in publications under R. 134(4) EPC. Even if there had been no general dislocation in the delivery or transmission of mail, users could still rely on such publications without suffering any disadvantages.

In T 1678/17 the appellant withdrew its request for oral proceedings and requested a partial refund of the appeal fee. The request for oral proceedings was not in fact withdrawn within one month of notification of the communication issued by the board of appeal. However, in view of the notice from the EPO dated 1 May 2020 concerning the disruptions due to the COVID-19 outbreak (OJ 2020, A60) and R. 134(2) and (4) EPC, the board held that the conditions for reimbursement of 25% of the appeal fee, stipulated in R. 103(4)(c) EPC, were fulfilled.

In J 11/88 (OJ 1989, 433) the board held that any time limit under the EPC 1973 which expired within the period of interruption or dislocation was extended **by operation of law**. Accordingly, if the President of the EPO did not issue a statement as to the duration of that period, because he did not have the relevant information at the right time, this could not affect the rights of a person adversely affected by the interruption or dislocation. Whether or not an interruption qualified as a "general interruption" was a question of fact, which had to be decided in the light of any credible information available; in case of doubt, the EPO should make official enquiries of its own motion in application of Art. 114(1) EPC 1973.

In J 4/87 (OJ 1988, 172) the board reaffirmed that in the event of an unforeseeable postal delay causing non-compliance with a time limit, the EPO had no discretion to extend the time limit other than in the cases referred to in R. 85(2) EPC 1973.

In J 3/90 (OJ 1991, 550) the Legal Board interpreted the concept of a **general** interruption, explaining that R. 85(2) EPC 1973 was not restricted to nationwide interruptions. In the case in hand, the board decided that the limited geographical extent of the disruption did not disqualify the interruption from being general. Whether or not a representative had undertaken all possible measures to avoid the effects of a postal strike was not a relevant test under R. 85(2) EPC 1973.

In J 1/93 the Legal Board again stated that for an interruption in the delivery of mail under R. 85(2) EPC 1973 to be considered general in character **the public in general** residing in an area of some magnitude, even if of limited geographical extent, had to be affected. The loss of a single mailbag might affect a number of individual addressees but not the public in general.

In J 14/03 the board confirmed that evidence of a disruption within the meaning of R. 85(2) EPC 1973 provided by the appellant can lead to a retrospective extension of time in a particular case, as occurred in J 11/88, if this evidence, had it been known at the time, would have been such as to warrant a Presidential statement under R. 85(2) EPC 1973. However, in contrast to the probative value of the evidence in J 11/88, in the case in hand the evidence was inconclusive.

1.3.3 Dislocation of a mail service outside the contracting states (Rule 134(5) EPC)

In J 13/05 the board highlighted that R. 85(5) EPC 1973 was inserted into the EPO following the events of 11 September 2001 because the legal remedies available at that time were inadequate. It was decided not to extend R. 85(2) EPC 1973 to postal interruptions outside the contracting states, as only for those states could the EPO be sure of obtaining the information necessary to enable the President to announce a general interruption or dislocation. Therefore, unlike the preceding paragraphs, R. 85(5) EPC 1973 was drafted so as to place the **burden of proof** on the party asserting a general interruption or dislocation of the mail service. Like R. 85(2) EPC 1973, R. 85(5) EPC 1973 required that more than one person using the mail service be affected or theoretically capable of being affected by the interruption or dislocation, even if a merely minor or geographically limited interruption might be sufficient.

1.4. Statutory periods of grace, additional period for payment of renewal fees and the fiction of observance of a time limit for fee payments

1.4.1 Additional period for payment of renewal fees under Rule 51(2) EPC

The substance of Art. 86(2) EPC 1973 (late payment of renewal fee and payment of additional fee) is now contained in R. 51(2) EPC.

In J 4/91 (OJ 1992, 402) the Legal Board held that when calculating the six-month period for the payment of a renewal fee with additional fee under Art. 86(2) EPC 1973, R. 83(4) EPC 1973 should be applied mutatis mutandis in the light of R. 37(1), first sentence, EPC 1973. This meant that the six-month period did not end on the day of the subsequent sixth month corresponding "in number" to the due date according to R. 37(1),

first sentence, EPC 1973 but on the day which was equivalent to this due date by virtue of its being the "last day of the month". For the purposes of calculating the additional period under Art. 86(2) EPC 1973, therefore, R. 83(4) EPC 1973, in the context of R. 37(1), first sentence, EPC 1973, resulted in a period running "from the last day of the month to the last day of the month". The additional period started on the last day of the month specified in R. 37(1), first sentence, EPC 1973 even in the circumstances mentioned in R. 85(1), (2) and (4) EPC 1973. The occurrence of such circumstances at the beginning of the period did not result in the end of the period being postponed beyond the end of the sixth month and into the seventh month.

1.4.2 Period of grace for payment of fees under Rule 85a EPC 1973

In the context of the EPC revision exercise (EPC 2000), R. 85a and 85b EPC 1973 were deleted to take account of the extended application of further processing under Art. 121 EPC (OJ SE 1/2003, 190). See "Case Law of the Boards of Appeal", 5th ed. 2006, VI.D.1.3.2, for a detailed, or "Case Law of the Boards of Appeal", 6th ed. 2010, VI.D.1.4.2, for a short, overview of the case law on this provision.

1.4.3 Fiction of fee payment in due time pursuant to Article 7(3) and (4) RFees

Reference is made to chapter III.U.3.1.

2. Date of receipt of documents transmitted by fax

In T 858/18 the board held that if a facsimile transmission of a document within the meaning of R. 50(3) EPC begins on an earlier date and extends beyond midnight to a later date, the entire document is accorded the later date as the single date of receipt. There was no legal basis for according the earlier date as the date of receipt for the part of the document arriving at the EPO before midnight.

In T 2307/15 the board pointed out that although some paragraphs were missing in the statement setting out the grounds of appeal filed by the appellant on 15 February 2016, when compared with the version filed on 16 February 2016, the former still allowed the reader to understand the reasons according to which the appellant requested the impugned decision to be set aside and the facts and evidence on which the appeal was based. The board held that the statement setting out the grounds of appeal received by fax on 15 February 2016 was therefore to be seen as being complete, since it fulfilled the purpose which it was meant to achieve. Hence, the board confirmed the approach taken in T 2061/12 and T 2317/13 (last page of statement of grounds was received minimally late). The dissenting decision in T 858/18 remained an isolated decision in an individual case based on a factual basis different from the case in hand.

This point was also addressed in the following decisions, reported elsewhere in the present publication: J 7/97 (one page missing from the description), T 683/06 (some application documents received before and some after midnight) and T 2061/12 (part of the notice of opposition received before and part of it after midnight).

3. Further processing under Article 121 EPC

Under Art. 121(1) EPC, the applicant can apply for the further processing of his application if he fails to observe a time limit vis-à-vis the Office. However, Art. 121(4) and R. 135(2) EPC lay down exceptions to this general rule, especially with regard to the time limits for priority, remedies and the request for further processing and re-establishment of rights, and with regard to the non-observance of certain time limits for which a special remedy provision exists in the Implementing Regulations (e.g. R. 58 and 59 EPC). Hence, in contrast to the provisions under the EPC 1973, further processing can be applied to the time limits for the payment of filing, search and designation fees, the national basic fees and the examination fees, and to the time limit for filing the request for examination (OJ SE 4/2007; MR/2/00, 157). The request is made simply by payment of the prescribed fee (OJ SE 5/2007).

In J 37/89 (OJ 1993, 201) the Legal Board pointed out that the applicants could overcome a loss of rights under Art. 96(3) EPC 1973 (which corresponds to Art. 94(4) EPC) resulting from the **refusal of a request for a time-limit extension** by requesting further processing in accordance with Art. 121 EPC 1973. At the same time, they could request reimbursement of the fee for further processing. This secondary request had to be decided on in connection with the final decision. Under Art. 106(3) EPC 1973 (Art. 106(2) EPC), the decision on the secondary request could be appealed together with the final decision. The appeal could also be confined to contesting the decision on the secondary request (see also J 29/10).

In J 47/92 (OJ 1995, 180) the Legal Board stated that further processing under Art. 121 EPC 1973 was available only in respect of those time limits the duration of which was to be determined or set by the EPO. This question has been overtaken by the new version of Art. 121 EPC which applies irrespective of whether the time limits are set by the EPO or are specified in the Convention or Implementing Regulations (MR/2/00, p. 157).

In J 16/92 the Legal Board held that the omitted act within the meaning of Art. 121(2) EPC 1973 (R. 135(1) EPC) consisted in filing a reply in substance to a first communication. It was not completed by filing a request for an extension of time for submitting that reply, since a request for a time limit was not equivalent to the act the party in question had proposed performing within the time limit requested.

In J 8/18 the appellant argued that further processing under Art. 121 EPC should be available in respect of missing the time limit in R. 49ter.2(b)(i) PCT. The Legal Board pointed out that Art. 121(4) EPC expressly ruled out further processing inter alia in respect of the time limit for requesting re-establishment of rights. A request for restoration of rights as specified in R. 49ter.2 PCT was equivalent, and identical in legal nature, to a request for re-establishment of rights under the EPC. The EPO was not entitled to grant further processing under Art. 121(4) EPC.

In T 646/20 the examining division had issued a decision to grant based on the applicant's explicit approval. Following the decision to grant, the appellant voiced its disapproval together with a request for further processing. The board held that in the case of grant an

application ceases to be pending on the day before the mention of its grant is published, G 1/09 (OJ 2011, 336). The request for further processing was thus filed at the stage when the patent application was no longer pending. The board accepted that the remedy of further processing did not require a pending application at the time the request is filed. But already the term "further processing of an application" indicated that it required an application. An application that is deemed withdrawn can return to the stage of a pending application once the request for further processing is successful, but an application that has been granted cannot.

4. Interruption of proceedings under Rule 142 EPC

4.1. Application of Rule 142 EPC by the EPO of its own motion

The EPO must apply the provisions of R. 142 EPC (R. 90 EPC 1973) of its own motion (J 1/87=J 902/87, OJ 1988, 323; J 23/88; T 315/87 of 14 February 1989; J 49/92; T 854/12; J 7/16; T 54/17). Entering an interruption in the register is not constitutive and is merely declaratory in effect (T 854/12). The consequence of an interruption in the proceedings is that the time limits in force as regards the applicant or patentee at the date of interruption of the proceedings, shall begin again as from the day on which the proceedings were resumed (see R. 142(4) EPC). However, the time limit for making the request for examination and the time limit for paying renewal fees are only suspended (see in this chapter III.D.4.8. "Consequences of interruption of proceedings (R. 142(4) EPC)").

In T 54/17 the board took the view that, in cases where an appeal was pending, the Legal Division did not have exclusive competence to decide on an interruption. It thereby endorsed the view taken in T 854/12 that a board could decide on this for itself in any proceedings before it because, otherwise, a department outside the boards of appeal could deprive it of its power over those proceedings without it being able to do anything about it, especially if interrupting them retrospectively.

In T 1389/18 the board held that the Legal Division generally had the power to establish that proceedings had been interrupted under R. 142(1)(b) EPC with retrospective effect too.

4.2. Amended Rule 142(2) EPC

By decision dated 27 March 2020, the Administrative Council of the European Patent Organisation amended the R. 142(2) EPC provision on resuming interrupted proceedings (OJ 2020, A76). The newly inserted second sentence permits the EPO to set a date on which it intends to resume proceedings of its own motion if, three years after publication of the date of their interruption in the European Patent Bulletin, it still has not been informed who is authorised to continue them.

4.3. Concept of legal incapacity (Rule 142(1)(a) and (c) EPC)

The EPC does not define the concept of "legal incapacity", which is assessed differently according to whether the person concerned is the applicant or patentee or a professional